

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO. 2261 OF 2012

Abdus Satter Biswas being dead his legal heirs
Most. Fatema Begum and others

--- Plaintiff-Petitioners

=Versus=

Md. Nurul Haque Howlader and others

--- Defendant-Opposite Parties

Mr. Tushar Banik, Advocate

---- For the Petitioner

Mr. Nirmalendu Dev, with

Ms. Ayesha Flora, Advocates

----- For the Opposite Party No.1

Judgment on: 28.05.2018

At the instance of the present plaintiff-petitioners, Abdus Satter Biswas being dead his legal heirs Most. Fatema Begum and others, a leave was granted and this Rule has been issued calling upon the opposite party No. 1 to show cause as to why the order dated 03.08.2011 passed by the learned Additional District Judge, Pirojpur, in Civil Revision No. 5 of 2007 rejecting the Civil Revision and modifying the order dated 07.02.2007 passed by the learned Senior Assistant Judge, Modbariya, Pirojpur in Title Suit No. 102 of 1996 shall not be set aside.

The relevant facts for disposal of the present Rule, *inter-alia*, are that the present petitioners as the plaintiffs filed that the Title Suit No. 102 of 1996 in the court of the learned Senior Assistant Judge, Madbariya for partition of the suit land described in the schedule of the

plaint. The present opposite party Nos. 2 -29 as the defendant Nos. 1-38 contested the suit. After hearing the parties, the suit was decreed in the preliminary form by the learned trial court on 09.07.2000 allocating 3.2 acres of land for the plaintiffs and land measuring 2.44 for the defendant Nos. 1-38 who are the present opposite party Nos. 2-39.

After the above preliminary decree the present opposite party No. 1, Md. Nurul Haque Howlader filed an application under Order 1 Rule 10 of the Code of Civil Procedure for addition of party in order to contest the said partition suit on the basis of the some registered purchased deed from the original S.A. and R.S. record of right owners being Prallod Chandra Rajakdas and others. One Bishnu Charan Rajakdas along with others filed the said application for addition of party as the present opposite party No. 1 in order to show his entitlement. The present opposite party No. 1 annexed a registered purchased deed dated 28.06.1992 for the land measuring 66 decimals owned by aforementioned Prollod Chandra Rajakdas, the registered deed dated 28.11.1990 for the land measuring 33decimal from Lolit Kumar Das and also registered purchased deed dated 17.03.2002 for the land measuring $1.36\frac{1}{2}$ acres from Ananto Kumar among other registered deeds in order to get ownership of total land measuring 3.16 acres.

After hearing the parties, the learned trial court allowed the application by his order dated 07.02.2007. Being aggrieved the present petitioners filed the Civil Revision No. 5 of 2007 in the Court of the learned District Judge, Pirojpur under Section 115(2) of the Code of Civil Procedure which was heard by the learned Additional District

Judge, Pirijpur who by his judgment and order dated 03.08.2011 discharged the revision. This revisional application has been filed under Section 115(4) of the Code of Civil Procedure challenging the legality of the said impugned order and the present leave and the Rule were issued thereupon.

Mr. Tushar Banik, the learned Advocate appearing for the present petitioners submits that the present petitioners obtained the preliminary decree in the Title Suit No. 102 of 1996 and also got Saham 3.02 acres of land and the contested defendants got 2.44 acres of land but the present opposite party No. 1 was not made a party as he did not acquire any entitlement upon the land claimed by him because he claimed to have purchased land from non co-owners of land, as such, he was not made a parties. The learned courts below committed error of law by allowing the application under Order 1 Rule 10 of the Code of Civil Procedure, thus, the Rule should be made absolute.

The Rule has been opposed by the present opposite party No. 1.

Mr. Nirmalendu Dev, the learned Advocate, appearing along with the learned Advocate Ms. Ayesha Flora for the opposite party No. 1, submits that the Title Suit No. 102 of 1996 was filed by the present petitioners without imploding the present opposite party No. 1 who produced relevant documents as to his entitlement upon the land in the joth of the said partition suit. No saham could be obtained by the preliminary decree passed by the learned trial court which deprived from the entitlement of the present opposite party No. 1, as such, the learned courts below committed no error of law by passing the concurrent order

for addition of party by the present opposite party No. 1, therefore, the Rule should be discharged.

Considering the above submissions made by the learned Advocates and also considering the revisional application filed under Section 115(4) of the Code of Civil Procedure along with the annexures therein, in particular the impugned order passed by the revisional court below, it appears to me that the present petitioners filed the partition suit by imploding some defendants. The present opposite party No. 1 Md. Nurul Haque Howlader who claimed to have purchased total land measuring 3.16 acres within the Khatian Nos. 194 and 95, mouja- Mithakhali, Sub-registrar Office and Upazila- Mothbaria, District- Pirojpur. From the revisional application it further appears that the learned trial court who passed the decree in a preliminary form in the said Partition Suit No. 102 of 1996 has allowed the application under Order 1 Rule 10 of the Code of civil Procedure by his order dated 07.02.2007 and the appeal against the said order of the trial court was rejected by the revisional court below by the impugned judgment and order.

From the above given facts and circumstances of this case and also concurrent findings of the courts below as to the application made by the present opposite party No.1 for addition of party, a question could certainly arise why the present petitioners as the plaintiffs failed to make the present opposite party No. 1 a party in order to contest the suit for the purpose of getting saham as per his entitlement through the relevant papers and documents. I consider that without imploding the present

opposite party No.1 as a party in the said partition suit has certainly effected his entitlement upon the suit land which should have been the subject matter of the preliminary decree passed by the learned trial court on 09.07.2000. I am also of the opinion that the said preliminary decree lost its legality because of the apparent defect of parties in the said partition suit and the learned trial court as well as the learned revisional court below committed no error of law by finding that the present opposite party No. 1 should be allowed to contest the suit after setting aside the decree passed in the preliminary form on 09.07.2000. I am, therefore, not inclined to interfere into the judgment and order passed by the learned revisional court below.

Accordingly, I do not find merit in the Rule.

In the result, the Rule is discharged.

In view of the above decision the decree passed in the preliminary form on 09.07.2000 in the partition Suit No. 102 of 1996 is hereby set aside.

The learned Assistant Judge, Madbariya, Pirojpur is hereby directed to re-hear the Title Suit No. 102 of 1996 after impleading the present opposite party No.1, Md. Nurul Haque Howlader, as the defendant in the said suit and by allowing all the parties to be adduced and produced documentary evidence as to entitlement upon the land in order to get appropriate saham and also to pass a preliminary decree within 28.05.2019 without allowing any necessary adjournment on the prayer of either of the parties.

The interim order of stay granted at the time of issuance of the Rule upon the impugned judgment and order is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the court concern immediately.